

M/s Three Star Paper Mills Pvt. Ltd. v. State of U.P.

Allahabad High Court · Division Bench · 9 September 2014 · Writ-C No. 48178 of 2014 · WRIT - C No. - 48178 of 2014 · **Writ dismissed; petitioner relegated to Clause 7.10 statutory remedy.**

HEADNOTE

A consumer seeking quashing of an electricity-bill order and a rebate must first use the statutory remedy under Clause 7.10 of the Electricity Supply Code, 2005. The writ was dismissed with liberty to pursue that forum.

FACTUAL SUMMARY

The petitioner paper mill filed a writ petition to quash an order dated 29.4.2014 and to obtain a direction for rebate on electricity bills. After hearing counsel for the petitioner and the Standing Counsel, the Division Bench noted a statutory remedy under the Electricity Supply Code, 2005, and did not examine the rebate claim or the contents of the impugned order on merits.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

statutory-remedy-billing-grievance

HOLDING

Where a consumer seeks quashing of an electricity-bill order and a rebate, Clause 7.10 of the Electricity Supply Code, 2005 is the statutory remedy; the writ petition is dismissed with liberty to pursue that forum.

¶ 1

PRINCIPLE TAGS

clause-7.10-forum-ombudsman-route-for-billing-grievances

A consumer seeking quashing of an electricity-bill order and a rebate must first use the statutory remedy under Clause 7.10 of the Electricity Supply Code, 2005. The writ was dismissed with liberty to pursue that forum. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE 29.4.2014 ORDER AND THE CLAIM FOR REBATE ON ELECTRICITY BILLS

Writ dismissed solely for the Clause 7.10 remedy; no finding on the rebate or the impugned order. ¶ 1